



Returning Officers (Scotland) Act 1977

1977 CHAPTER 14

An Act to make provision as respects Scotland regarding returning officers for parliamentary elections, the staff of such officers, and for connected purposes.

[26th May 1977]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Returning
Officers.
1949 c. 68.

1. For subsection (2) of section 17 of the Representation of the People Act 1949 (returning officers in Scotland) there shall be substituted the following subsection—

“(2) In Scotland, the returning officer for a parliamentary election shall be—

- (a) in the case of a constituency wholly situated in one region or islands area, the person who, under section 6 of the Local Government (Scotland) Act 1973 is, or may discharge the functions of, the returning officer at elections of councillors for the regional or islands council; and
- (b) in the case of a constituency situated in more than one region or islands area, such person as aforesaid as the Secretary of State may by order direct.”.

Staff for
returning
officers.

2.—(1) The council of a region or of an islands area shall place at the disposal of the returning officer for a constituency wholly or partly situated in that region or islands area, for the purpose of assisting the returning officer in the discharge of any functions conferred on him in relation to a parliamentary election in that constituency, the services of officers employed by the council.

(2) The council of a district shall, if so requested by the returning officer for a constituency wholly or partly situated in that district, place at the disposal of the returning officer, for the purpose of assisting the returning officer as mentioned in subsection (1) above, the services of officers employed by the council.

3.—(1) For subsection (2) of section 86 of the Representation of the People Act 1949 (officials at elections not to act for candidates) there shall be substituted the following subsection—
Amendment and repeals.
1949 c. 68.

“(2) An offence under subsection (1) above in relation to an election in Scotland shall not be tried on indictment but shall be punishable on summary conviction by a fine not exceeding £200.”.

(2) The following provisions of the said Act of 1949 are hereby repealed—

Section 19;

Section 86(3) and (4);

In Schedule 2, in the parliamentary elections rules, in rule 3(4), the words “Except in Scotland”, rule 3(5) and rule 22(5).

4.—(1) This Act may be cited as the Returning Officers (Scotland) Act 1977 and shall come into operation on such day as the Secretary of State may by order made by statutory instrument appoint.
Short title,
commencement
and extent.

(2) This Act extends to Scotland only.